STATE OF NEW JERSEY,
Appellant/Cross-Appellee,

VS.

JAMES COMER,
Appellee/Cross-Appellant.

**SUPREME COURT OF NEW JERSEY**
**DOCKET NO.: 077318**

Criminal Action

On Grant of Direct Certification From:
Superior Court of New Jersey,
Law Division, Essex County
Honorable Thomas R. Vena, J.S.C
Docket No. Below A-4854-14

# SUPPLEMENTAL BRIEF OF APPELLEE/CROSS-APPELLANT JAMES COMER

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## PRELIMINARY STATEMENT

Defendant James Comer's sentence assures that he will die in prison, without the opportunity to seek release, for offenses that he committed as a juvenile. For the reasons set forth below, and based upon a series of recent decisions of the United States Supreme Court, this sentence violates both the Eighth Amendment to the United States Constitution, and Article 1, paragraph 12 of the New Jersey Constitution.

Specifically, the Court's decisions in Roper v. Simmons, 543 U.S. 551 (2005), Graham v. Florida, 560 U.S. 48 (2010), Miller v. Alabama, 132 S.Ct. 2455 (2012), and Montgomery v. Louisiana, 136 S.Ct. 718 (2016), engender a sea change in the law of juvenile sentencing, categorically barring three classes of punishment for juveniles: the death penalty, Roper, 543 U.S. 551, life without parole ("LWOP") for nonhomicide offenders, Graham, 560 U.S. 48, and LWOP for homicide offenders "whose crimes reflect transient immaturity [and not] . . . irreparable corruption." Montgomery, 136 S.Ct. at 734 (discussing Miller, 132 S.Ct. 2455, and holding it retroactive). These holdings, anchored in medical and social science, all derive from the recognition that the adolescent brain is physiologically underdeveloped, rendering juveniles different from adults in three critical respects: they are less mature and more reckless in their decision-making; they have less control over their environments and are more susceptible to peer

pressure; and their identities are "more transitory, less fixed," making it less likely that their behavior reflects deep-seated character traits. Roper, 543 U.S. 569-570; accord Graham, 560 U.S. at 68.

Accordingly, the Court has held, the purposes of criminal sentencing — retribution, deterrence, incapacitation, and rehabilitation — apply with far less force in the cases of juveniles. Graham, 560 U.S. at 71-74. Application of these purposes led the Court in Graham to conclude that juveniles who neither kill nor intend to kill have a "twice diminished moral culpability" such that LWOP is never permissible. Id. at 69. But even for juvenile homicide offenders, only the incapacitation rationale can ever justify LWOP, Miller, 132 S.Ct. at 2469; Montgomery, 136 S.Ct. at 735. And because this rationale "requires a sentencer to make a judgment that the juvenile is incorrigible," a predictive capacity that evades "even [] expert psychologists" id. at 73, the Constitution permits it only for "the rarest of juvenile [homicide] offenders," Montgomery, 136 S.Ct. at 734.

These principles prohibit the sentence imposed here. The Supreme Court's juvenile sentencing jurisprudence applies to Comer because his sentence is functionally and constitutionally indistinguishable from LWOP. The same jurisprudence leads inexorably to the conclusion that LWOP and its functional equivalent are unconstitutional for juveniles in all circumstances. That is particularly so under the New Jersey Constitution, which has historically provided

broader protection to juveniles and criminal defendants. Further, Graham categorically bars LWOP for a subset of juvenile homicide offenders who, like Comer, neither killed nor intended to kill. Finally, in Comer's case, the sentence was imposed in violation of Miller and Montgomery because Comer was sentenced to de facto LWOP without consideration of the mitigating characteristics of youth, or a determination that he is, in fact, incorrigible.

To be clear, the relief Comer seeks here is not immediate release for himself or any other juvenile offender; the law does not forbid incarcerating juveniles for their natural lives, so long as the decision to do so is made subsequent to initial sentencing, when the juvenile has matured and his adult conduct can be reliably assessed to determine whether he is incorrigible or not. In other words, what Comer challenges here is not whether but when New Jersey may determine that either he or anyone else should spend life in prison for juvenile offenses. Because the decision in Comer's case was made at the time of his sentencing, when his offense most likely reflected the shortcomings of adolescence, his sentence is unconstitutional. As a result, the decision below vacating Comer's sentence should be upheld, but modified to bar LWOP for all juveniles.

## STATEMENT OF PROCEDURAL AND FACTUAL HISTORY

Comer and two accomplices, Ibn Adams and Dexter Harrison, committed

four armed robberies between the evening of April 17 and the early morning of April 18.[1] Pa83.[2] During the second robbery, as the victim, George Paul, was trying to escape, Adams fired a single, fatal shot into Paul's back. Da3. Immediately before the shot was fired, Adams was rifling through Paul's pockets while Comer stood still, his hands empty. Da4. Moments later, Harrison asked Adams why he had shot Paul. Da6. Adams replied, "f*ck them, he didn't have no money." Da6. Comer, born January 10, 1983, was 17 years and three months old at the time. Pa83.

Comer was arrested and charged as an adult with (1) second-degree conspiracy to commit armed robbery, N.J.S.A. 2C:5-2; (2) first-degree felony murder, N.J.S.A. 2C:11-3(a)(3); (3) four counts of first-degree robbery, N.J.S.A. 2C:15-1; (4) six counts of third-degree unlawful possession of a handgun, N.J.S.A. 2C:39-5(b); (5) four counts of possession of a weapon for an unlawful purpose,

[1] For the convenience of the Court, this brief combines its recitation of the facts and the procedural history, as those matters are here inextricably intertwined.

[2] Comer uses the abbreviations "Pb" and "Pa" to refer to the State's Brief and Appendix filed in the Appellate Division. Similarly, Comer references his own Brief and Appendix, filed below, as "Db" and "Da," respectively.

N.J.S.A. 2C:39-4(a); and (6) third-degree theft, N.J.S.A. 2C:20-3(a).[3] Pa83.

At Comer's trial, the State introduced no evidence that Comer intended to shoot Paul or was even aware that Adams might shoot Paul or anyone else. Rather, the State argued that Adams acted alone, spontaneously shooting the victim. Da11. The State thus relied on a theory of felony murder in prosecuting Comer for homicide. Da9. On December 19, 2003, after a two-week jury trial, Comer was found guilty on all counts. Pa83.

At sentencing, defense counsel presented no testimony or other evidence but argued that Comer's sentences on his felony murder and first-degree robbery convictions should be run concurrently. Da28. Defense counsel's primary argument was that consecutive terms would yield an unfair disparity between Comer's sentence and that of co-defendant Dexter Harrison, who accepted a plea. Da20-22, 27 ("[I]t's that disparity, I guess, that's kind of at the base of everything, just doesn't seem appropriate."). Counsel also argued for application of mitigating factor 13, N.J.S.A. 2C:44-1b(13) ("The conduct of a youthful defendant was substantially influenced by another person more mature than defendant"), urging

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[3] Adams was charged with first-degree murder, N.J.S.A. 2C:11-3(a)(3), but was convicted only of first-degree felony-murder. N.J.S.A. 2C:11-3(a)(1)-(2). Adams's aggregate sentence was 67 years imprisonment with 61.45 years to be served without parole. Pa28. Comer's third accomplice, Harrison, pleaded guilty to robbery and aggravated manslaughter and received "twenty years with seventeen years to be served without parole." Id. at 26.

that Harrison, who was older than Comer and Adams, "concocted this scheme and had these two minions working for him." Da22. Counsel also noted more than once that Comer was 17 at the time of the offense, Da24, 26, 29, and that with concurrent sentencing, he could be released in his 50's and have a chance at a life after prison, Da25. Additionally, counsel noted that, according to the presentence report, Comer used alcohol and marijuana habitually. Da28; see also Da73. Finally, counsel stated that all complaints against Comer in juvenile court — which were for minor infractions such as receipt of stolen property and possession of burglar tools — had been dismissed, and that Comer therefore had no criminal record. Da23.

Nonetheless, in sentencing Comer, the trial court stated:

> I'm [] unpersuaded by anything that has been presented to me to indicate that any consideration be given to you in imposing anything less than the presumptive term. Nothing in your background mitigates the crimes for which you stand before me convicted.

[Da48].

The court then sentenced Comer to 75 years imprisonment, of which 68 years and three months were to be served without eligibility for parole.[4] Pa83. That sentence consisted of a 30-year term for the felony-murder count, without parole

[4] Defendant received credit for the 1,410 days that he had spent in custody prior to sentencing. Da58.

eligibility, and 15 years for each of the three counts of first-degree robbery, 85% of which were to be served without eligibility for parole pursuant to the No Early Release Act ("NERA"), N.J.S.A. 2C:43-7.2. Pa83-84. Each of these four sentences was to run consecutively. Pa83-84. In addition, Comer was sentenced to four years for each of five weapons charges and four years for the automotive theft charge, each to run concurrently with all other counts of the indictment. Pa83-84.

Comer filed a timely appeal, specifically challenging his sentence on the grounds that the Court erred by (1) giving no weight to mitigating factor thirteen, that he was a youthful defendant under the influence of a more mature person; (2) imposing consecutive rather than concurrent sentences under State v. Yarborough, 100 N.J. 627 (1985); (3) imposing sentences above the presumptive sentences, in violation of State v. Natale, 184 N.J. 458 (2005); and (4) disregarding the discrepancy between Comer's sentence and those of his co-defendants. Pa28. Comer's conviction and sentence were affirmed. State v. Adams, 2006 WL 3798760, at *6 (App. Div. Dec. 28, 2006), available at Pa29. The New Jersey

Supreme Court granted certification[5] but affirmed Comer's conviction and sentence. State v. Adams, 194 N.J. 186, 190 (2008).

On July 9, 2008, Comer filed a pro se petition for post-conviction relief ("PCR"), alleging with respect to his sentence that it was excessive because, "[the] [s]entencing judge abused his discretion when he sentenced Comer to consecutive sentences for a single conspiracy."[6] Da76. Counsel for Comer thereafter filed briefs, alleging additional grounds for relief.[7] Pa58. Comer's PCR claims were denied on September 22, 2009. Pa31-55. Comer appealed from that decision and, on October 23, 2012, the Appellate Division reversed and remanded for an evidentiary hearing. Pa57-60. That hearing was held on October 11, 2013, after

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[5] Certification was granted to consider (1) whether the trial court should have excluded certain eye-witness identifications; (2) whether the trial court erred in failing to instruct the jury on how to consider Harrison's guilty plea; and (3) whether the trial court violated the rule that sentences above the presumptive term based solely on judicial findings of aggravating factors other than prior criminal conviction violated the Sixth Amendment. The Court held (1) that the record was insufficient for reevaluation of the standard on out-of-court identifications; (2) the trial court did not commit plain error by failing to give a cautionary charge on the use of Harrison's testimony; and (3) Comer's sentence did not require remand in light of the Court's decision in Natale, 184 N.J. 458. Adams, 194 N.J. at 191.

[6] Comer also alleged that his trial counsel was ineffective for failing to call certain witnesses, for not filing a motion to suppress certain evidence, and for not objecting to introduction of certain evidence by co-defendant's counsel. Comer also alleged abuse of discretion by the trial court in failing to rule on a motion to dismiss the indictment. Da76.

[7] These included claims of juror impropriety, and ineffective assistance of trial counsel for failure to insure an impartial jury and failure to pursue exculpatory evidence. Da76.

which the trial court again denied Comer relief, in an opinion rendered on November 6, 2013. Pa60-61. Comer appealed, but on December 30, 2015, the Appellate Division affirmed. DSa1.[8]

Meanwhile, on May 23, 2013, Comer filed a pro se Motion seeking to correct his sentence; he also sought assigned Counsel, Pa65-78; later, he withdrew this motion without prejudice so that he could re-file with the assistance of counsel. Pa80. On June 13, 2014, undersigned Counsel filed the present action on Comer's behalf. Pa84. Oral argument was heard in the trial court on May 8, 2015. Pa82. On May 11, 2015, the court below ruled by memorandum opinion. Pa82-97. Specifically, the court held that Comer had been sentenced to de facto life without parole. Pa85. The court further held that Miller applies retroactively under New Jersey law,[9] Pa96, and that Comer was sentenced in violation of Miller because the sentencing court did not consider the mitigating factors of youth. Pa96. The court rejected, however, Comer's arguments that Roper, Graham, and Miller require a categorical bar against sentencing juveniles to life without parole, Pa90-91, and that Graham more specifically prohibits life without parole for juveniles who neither kill nor intend to kill, Pa91-92.

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[8] Comer refers to the appendix to this brief using "DSa."

[9] That Miller must be retroactively applied was definitively determined by the United States Supreme Court in Montgomery, 136 S.Ct. 718, decided after the trial court's ruling.

The Appellate Division granted the State's motion for leave to appeal on June 29, 2015, Da79, and Comer's motion for leave to cross-appeal on July 6, 2015. Da80. Briefing on the appeal and cross-appeal were completed by January 27, 2016; submissions under R. 2:6-11(d) addressing the United States Supreme Court's decision in Montgomery, 136 S.Ct. 718, holding Miller fully retroactive, were completed by February 11, 2016.

On March 4, 2016, Comer sought direct certification under R. 2:12-2(a). This Court granted that application on March 29, 2016, to answer the question, "[d]oes defendant's aggregate sentence, imposed for a homicide offense among other charges, violate the proscriptions of Miller v. Alabama, 132 S.Ct. 2455 (2012) and other authority regarding sentences of juvenile offenders?" Comer here answers that question in the affirmative, arguing that LWOP is unconstitutional for all juveniles, for the sub-group of juveniles who neither killed nor intended to kill, and because his particular sentence, which is functionally equivalent to LWOP, was imposed without consideration of the mitigating factors of youth, and without a determination that he is incorrigible.

## ARGUMENT

### I. COMER'S SENTENCE IS CONSTITUTIONALLY INDISTINGUISHABLE FROM A SENTENCE OF LIFE WITHOUT PAROLE.

Comer was sentenced to de facto life without parole for offenses committed as a juvenile. Born on January 10, 1983, Comer was 17 years and three months old at the time he committed the offenses at issue on April 17 and 18 of 2000. Pa83. He was sentenced to a term of 75 years, during which he is ineligible for parole for 68 years and three months. Pa83. Comer's first date of parole eligibility will thus fall in the vicinity of July 2068, when he will be over 85 years old. But Comer will by then likely have been dead for several years. According to life expectancy tables published in the National Vital Statistics Reports ("NVSR") appended to R. 1:13-5, Comer's life expectancy is, at most, 80 — five years short of his first opportunity for release.[10]

[10] This figure is derived based upon the method for determining life expectancy utilized by the Appellate Division in State v. Zuber, 442 N.J. Super. 611, 627-30 (App. Div. 2015), and State v. Zarate, 2016 WL 1079462, at *11-12 (App. Div. Mar. 21, 2016), available at DSa45. Comer does not concede that this method is correct. Zuber and Zarate use life expectancy tables from the time of the defendant's challenge, not the time of sentencing, and furthermore decline to account for differences in life expectancy based on race and gender. See Zuber, 442 N.J. Super. at 627-30; Zarate, 2016 WL 1079462, at *11-12, DSa54. While not relevant here, this method can result in calculations of life expectancy that are significantly longer than would be the case using more accurate data. See, e.g., Zuber, 442 N.J. Super. at 631-32 (accounting for Zuber's race, as a black man, yields life expectancy 10-11 years below the court's race-neutral figure).

In keeping with this fact, the trial court below found, Pa85, and the State has never contested, that Comer's sentence is the functional equivalent of LWOP.

It follows that Comer's sentence of de facto LWOP is governed by the principles of Montgomery, Miller, and Graham, as the trial court below correctly held. Pa85. These principles, are discussed in detail below. See Part II.B.2 infra. In sum, juvenile sentencing must, as a matter of constitutional law, account for the fact that that juveniles are inherently different from and less culpable then adults: because their brains are physiologically less developed, juveniles are more impulsive and more susceptible to peer pressure, and their behavior is less indicative of permanent character traits, meaning they are more capable of reform. See Roper, 543 U.S. at 569-70. Accordingly, they ought not be sentenced, ab initio, to life in prison, regardless of whether such a sentence is denominated life without parole, or a term of years that amounts to the same thing. See, e.g., Bear Cloud v. State, 334 P.3d 132, 141-42 (Wyo. 2014) ("The juvenile who will likely die in prison is entitled to the Eighth Amendment's presumption 'that children . . . have diminished culpability and greater prospects for reform.'"); People v. Rainer, __P.3d__, 2013 WL 1490107, at *14 (Col. Ct. App. April 11, 2013) ("[Graham's] holding and reasoning should apply to [any] sentence that . . . fails to recognize that '[j]uveniles are more capable of change than are adults, and their actions are

less likely to be evidence of 'irretrievably depraved character' than are the actions of adults.'").

The Court's opinions from Roper to Montgomery also focus upon the harshness of the juvenile sentence, see, e.g., Graham, 560 U.S. at 70. But whether a defendant is sentenced to formal or de facto LWOP, the harshness of the sentence is the same: either sentence "means denial of hope; . . . that good behavior and character improvement are immaterial," Graham, 560 U.S. at 70, and "gives no chance for fulfillment outside prison walls, no chance for reconciliation with society," id. at 79. See Hayden v. Keller, __F. Supp. 3d__, 2015 WL 5773634, at *15 (E.D.N.C. Sept. 25, 2015) ("[By imposing a de facto LWOP sentence on a juvenile] the State [] denie[s] that offender the 'meaningful opportunity to obtain release based on demonstrated maturity and rehabilitation[.]'"); Henry v. State, 175 So.3d 675, 679-80 (Fla. 2015) (vacating juvenile sentence of 90 years without parole because, "Graham is implicated when a juvenile nonhomicide offender's sentence does not afford any 'meaningful opportunity to obtain release based on demonstrated maturity and rehabilitation.'").

Nor do the accepted rationales for sentencing, also critical to the Court's analysis, see Graham, 560 U.S. at 70-74, permit of a distinction between formal and de facto life without parole for juveniles. That is, the relative strength or weakness of these rationales — retribution, deterrence, incapacitation, and

rehabilitation — has no relation to a sentence's formal label, but instead turns on its functional effect. See Graham, 560 U.S. at 70-74. See, e.g., Brown v. State, 10 N.E.3d 1, 8 (Ind. 2014) ("Similar to a life without parole sentence, Brown's 150 year sentence ''forswears altogether the rehabilitative ideal.''").

Indeed, to interpret the Supreme Court's holdings as applicable only to sentences formally designated "life without parole," would elevate form over substance in a way that both the United States Supreme Court and this Court have always rejected. See, e.g., Bd. of Cty. Comm'rs v. Umbehr, 518 U.S. 668, 679 (1996) ("Determining constitutional claims on the basis of [] formal distinctions, which can be manipulated largely at the will of the government . . . , is an enterprise that we have consistently eschewed.") (citing, e.g., Colorado Republican Fed. Campaign Comm. v. Fed. Election Comm'n, 518 U.S. 604, 622 (1996) (opinion of Breyer, J.) ("[T]he government 'cannot foreclose the exercise of rights by mere labels'"); Escobedo v. Illinois, 378 U.S. 478, 486 (1964) (declining to "exalt form over substance" in determining the temporal scope of Sixth Amendment protections); Crowell v. Benson, 285 U.S. 22, 53 (1932) ("Regard must be had . . . in . . . cases where constitutional limits are invoked, not to mere matters of form but to the substance of what is required"); Chicago, B. & Q.R. Co. v. Chicago, 166 U.S. 226, 235 (1897) ("In determining what is due process of law regard must be had to substance, not to form.")); State v. Stovall, 170 N.J. 346, 363

(2002) (refusing to "elevate form over function" in "reasonable suspicion" analysis); accord Casiano, 115 A.3d at 1044 ("We agree, however, with those courts that have concluded that the Supreme Court's focus in Graham and Miller 'was not on the label of a 'life sentence'' but rather on whether a juvenile would, as a consequence of a lengthy sentence without the possibility of parole, actually be imprisoned for the rest of his life."); Moore v. Biter, 725 F.3d 1184, 1192 (9th Cir. 2013) ("Graham's focus was not on the label of a 'life sentence' — but rather on the difference between life in prison with, or without, possibility of parole.").

Thus, both the United States Supreme Court and the lower courts of this State have held these precedents applicable to terms of years that amount to LWOP, just as surely as to formal sentences of life without parole. See Bear Cloud v. Wyoming, 133 S.Ct. 183, 183–84 (2012) (vacating and remanding for resentencing in accordance with Miller in the case of a juvenile defendant sentenced to consecutive terms of life with parole for murder and 20-25 years for aggravated burglary); Zarate, 2016 WL 1079462, at *11, DSa54 (finding Miller applicable to de facto LWOP because "[t]he United States Supreme Court's case law . . . focuses upon whether a juvenile offender will have a 'meaningful' opportunity for a future life outside of prison walls."). Indeed, the majority of state and federal courts to have reached the issue are in agreement that, "Graham's analysis does not focus on the precise sentence meted out. Instead . . . it holds that

a state must provide a juvenile offender 'with some realistic opportunity to obtain release' from prison during his or her expected lifetime.'" People v. Caballero, 282 P.3d 291, 298 (Cal. 2012); accord Moore, 725 F.3d at 1191-92; Greiman v. Hodges, 79 F. Supp. 3d 933 (S.D. Iowa 2015); Hayden, 2015 WL 5773634, at *8; Henry, 175 So.3d 675; State v. Riley, 110 A.3d 1205, 1213-14 (Conn. 2015); State v. Ronquillo, 361 P.3d 779 (Wash. Ct. App. 2015); Bear Cloud, 334 P.3d at 141-42; Brown, 10 N.E.3d at 8; Null, 836 N.W.2d 41; Rainer, 2013 WL 1490107.

In sum, this Court should, as one jurisdiction has held, "focus on the forest — the aggregate sentence — rather than the trees — consecutive or concurrent, number of counts, or length of the sentence on any individual count." Brown, 10 N.E.3d at 8. Graham, Miller, and Montgomery must, then, be applied in Comer's case.

## II. LIFE WITHOUT PAROLE, INCLUDING DE FACTO LIFE WITHOUT PAROLE, IS UNCONSTITUTIONAL FOR ALL JUVENILES, REGARDLESS OF THE OFFENSE.

Both the United States and the New Jersey Constitutions mandate proportional sentencing under their respective Cruel and Unusual Punishment Clauses. U.S. Const. amend VIII; N.J. Const., art. I, para. 12; see Graham, 560 U.S. at 59 ("The concept of proportionality is central to the Eighth Amendment."); accord State v. Maldonado, 137 N.J. 536, 556 (1994). New Jersey and federal law

employ the same test for proportionality, see State v. Ramseur, 106 N.J. 123, 169 (1987),[11] but this Court should conduct a distinct State proportionality analysis, id. at 169 ("[T]his Court recognizes its freedom — indeed its duty — to undertake a separate analysis under the cruel and unusual punishment clause of the New Jersey Constitution."). This is especially so because Article I, paragraph 12 of the State Constitution "affords greater protections . . . than does the [E]ighth [A]mendment of the federal constitution." State v. Gerald, 113 N.J. 40, 76 (1988).

In particular, the standard for determining whether the Constitution categorically prohibits a particular punishment is multi-faceted.[12] First, the Court must consider "objective indicia of society's standards, as expressed in legislative enactments and state practice." Graham, 560 U.S. at 61 (quoting Roper, 543 U.S.

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[11] New Jersey articulates the proportionality test under its State Constitution as requiring consideration of three factors, see Johnson, 166 N.J. at 548; the United States Supreme Court has been less clear with regard to the number of factors in the federal test, see generally, Graham, 48 U.S. 560 (outlining test as a two-step inquiry, but considering multiple factors in each step). Ultimately, however, the tests entail assessment of identical considerations: contemporary standards of decency as manifested through objective metrics; proportionality as measured subjectively by the courts upon consideration of science and social science; and reflection on the purposes of punishment in the particular context. See Graham, 560 U.S. at 62-82; Maldonado, 137 N.J. at 556-61.

[12] Proportionality has two distinct doctrinal strains, each with a separate legal standard: an individual sentencing strain, which addresses the constitutionality of a particular defendant's sentence, and a categorical strain, by which the constitutionality of a particular punishment for a class of offenders is ascertained. Graham, 560 U.S. 48, 59-61. This brief addresses the second, categorical strain.

at 572); accord Maldonado, 137 N.J. at 557-58. Then, the Court applies its "own judgment," Kennedy v. Louisiana, 554 U.S. 407, 434 (2008), considering the culpability of the class of offenders at issue, Graham, 560 U.S. at 67-68; Roper, 543 U.S. at 569; Maldonado, 137 N.J. at 558-59, the severity of the punishment, Graham, 560 U.S. at 69-70; Gerald, 113 N.J. at 89, whether penological justifications support the punishment, id. at 71; Ramseur, 106 N.J. at 178-80, whether a categorical bar is necessary as opposed to a case-by-case approach, Graham, 560 U.S. at 74, and whether there is consensus in international law on the question, id. at 80; Roper, 543 U.S. at 578.

Proportionality review is not a balancing test. Instead, "[i]f the punishment fails any one of [these] tests, it is invalid." Gerald, 113 N.J. at 78 (citing Coker v. Georgia, 433 U.S. 584, 592 (1977)). Here, the appropriate analysis requires that the Court categorically prohibit juvenile LWOP and de facto LWOP in all cases.

### *A. The New Jersey Constitution Provides for Greater Protections Than Does the Federal Constitution, Including That It Bars Life Without Parole for Juvenile Offenders.*

First and foremost, Comer's sentence is, as a categorical matter, unconstitutional under New Jersey's Cruel and Unusual Punishment Clause, N.J. Const., art. I, para. 12. To be sure, the United States Supreme Court in Miller stopped short of holding that juveniles may never be sentenced to life without

parole under the Federal Constitution (even in homicide cases), although it also did not hold to the contrary. Miller, 132 S.Ct. at 2469 ("Because [our] holding is sufficient to decide these cases, we do not consider Jackson's and Miller's alternative argument that the Eighth Amendment requires a categorical bar on life without parole for juveniles[.]"). However, applying the criteria established by this Court for when it will diverge from the Federal Constitution, see State v. Hunt, 91 N.J. 338, 363-68 (1982) (Handler, J., concurring); State v. Williams, 93 N.J. 39 (1983) (adopting Justice Handler's concurring opinion in majority holding), makes clear that, even assuming that the United States Supreme Court allowed for the

possibility of life without parole sentences for juveniles, this Court should not.[13]

Here, regardless of how the Federal Constitution is eventually construed by the United States Supreme Court, a categorical ban on LWOP for all juveniles is required by the New Jersey Constitution. This is so first because New Jersey has a rich history and tradition of interpreting its own Constitution to provide greater protection for individual liberties; second, because criminal law in general and the treatment of juveniles in particular are matters of special State interest and concern; and third, because New Jersey has particularly protective beliefs and

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[13] Hunt requires that, in deciding whether or not the New Jersey Constitution should be interpreted differently than the Federal, the Court consider: (1) textual differences in constitutional language; (2) respective drafting histories; (3) State law predating a Supreme Court opinion; (4) differences in federal and State structures; (5) subjective matters of particular State or local interest; (6) State history or traditions; and (7) societal beliefs or attitudes particular to the State. Hunt, 91 N.J. at 363-68. However, these factors are "illustrative, rather than exhaustive," id. at 368, and this Court has made clear that it may diverge from the Federal Constitution where, as here, some but not all of the factors counsel such divergence. See, e.g., State v. Eckel, 185 N.J. 523, 538 (2006) ("Although [the relevant text of the New Jersey Constitution] is almost identical to the text of the Fourth Amendment to the Federal Constitution, we have not hesitated in the past to afford our citizens greater protection against unreasonable searches and seizures under Article I, Paragraph 7 than would be the case under its federal counterpart."). In interpreting the State Cruel and Unusual Punishment Clause more broadly than the Eighth Amendment, this Court has several times relied on a single Hunt factor. See, e.g., Gerald, 113 N.J. at 76 (basing decision on factor (5), the particular State interest in criminal punishment); Ramseur, 106 N.J. at 167 (same); State v. Martini, 144 N.J. 603, 612-13 (1996) (basing decision on factor (4), and describing the unique role of the judiciary with regard to determining the constitutionality of capital punishment); State v. Marshall, 130 N.J. 109, 209 (1992) (invoking factors (6) and (7), based upon New Jersey's long history and deeply-held beliefs in opposition to the "terrible realities" of racism).

attitudes concerning juveniles in the criminal justice system. These are each addressed briefly below.

First, New Jersey has a lengthy and significant history of providing broader protection for individual liberties under its own Constitution than exist under the Federal one. See Hunt, 91 N.J. at 366-67 (Handler, J., concurring) (noting "A state's history and traditions may [] provide a basis for the independent application of its constitution" and citing, by way of example, "New Jersey's strong tradition of protecting individual and associational rights"). That is, as this Court has held, the Federal Constitution "establish[es] not the ceiling but only 'the floor of minimum constitutional protections[,]'" Eckel, 185 N.J. at 538, and upholds the State Constitution as "a second line of defense for those rights protected by the federal Constitution and [] an independent source of supplemental rights unrecognized by federal law," Hunt, 91 N.J. 338, 346 (1982); see also State v. Baker, 81 N.J. 99, 112, n.8 (1979) ("'[S]tate courts cannot rest when they have afforded their citizens the full protections of the federal Constitution. State Constitutions, too, are a font of individual liberties, their protections often extending beyond those required by the [United States] Supreme Court's interpretation of federal law.'").

Thus, in diverse areas, New Jersey's courts have routinely invoked the State Constitution where federal law has been insufficiently protective of the rights of its

citizens. See, e.g., Planned Parenthood of Cent. New Jersey v. Farmer, 165 N.J. 609 (2000) (striking down Parental Notification for Abortion statute under State equal protection principles where similar regulations were upheld under federal Constitution); New Jersey Coal. Against The War In The Middle East v. J.M.B. Realty, 138 N.J. 326 (1994) (State constitutional free speech protections broader than the First Amendment); Right to Choose v. Byrne, 91 N.J. 287 (1982) (State Constitution safeguards greater individual rights to health and privacy); In re Grady, 85 N.J. 235, 249 (1981) (recognizing greater right to privacy under the State Constitution); State v. Schmid, 84 N.J. 535, 560 (1980) (recognizing a greater right of free speech on private university campus); In re Quinlan, 70 N.J. 10 (1976) (finding a right of choice to terminate life support systems as aspect of right of privacy, which does not exist in the federal system); Robinson v. Cahill, 62 N.J. 473, 482 (1973) (finding a right to education under the State Constitution, which the United States Supreme Court has explicitly denied).

This Court has been especially disposed to go further than the Federal Constitution with regard to the rights of criminal defendants. For example, the State Constitution is more protective with regard to rights against unreasonable search and seizure. See, e.g., State v. Shannon, 222 N.J. 576, 592 (2015) (refusing to adopt federal good faith exception to the exclusionary rule because it "has been explicitly, and consistently, rejected" under State Constitution); State v. Johnson,

193 N.J. 528, 543 (2008) ("[B]y allowing a defendant broader standing to challenge evidence derived from unreasonable searches and seizures under our State Constitution, we increase the privacy rights of all New Jersey's citizens[.]"); State v. Pierce, 136 N.J. 184, 208-13 (1994) (pat-down search permissible under the Fourth Amendment violated the State Constitution); State v. Hempele, 120 N.J. 182, 196-97 (1990) (State Constitution prohibits warrantless searches of garbage bags left on curb for collection, notwithstanding permissibility under the Fourth Amendment); State v. Novembrino, 105 N.J. 95 (1987) (refusing to adopt good faith exception to exclusionary rule as the United States Supreme Court had done); State v. Alston, 88 N.J. 211 (1981) (recognizing greater standing to challenge validity of car search under the State Constitution); State v. Johnson, 68 N.J. 349, 353 (1975) (requiring a higher standard for waiver of right to withhold consent to a search). It has been more protective of the right to counsel. See, e.g., State v. Norman, 151 N.J. 5, 25 (1997) (finding greater State constitutional protection for criminal defendants from attorney conflicts of interest). It has more zealously safeguarded the right not to incriminate oneself. See, e.g., State v. Muhammad, 182 N.J. 551, 568-69 (2005) (State privilege against self-incrimination stronger than that provided by the Fifth Amendment). It has far greater protections with regard to the right to indictment by grand jury. See generally State v. Hogan, 144 N.J. 216, 231 (1995). And it has, within the criminal process, more jealously guarded

defendants' rights to privacy, see, e.g., Doe v. Poritz, 142 N.J. 1, 104 (1995) (State constitution more protective of convicted sex offenders' reputation), and to the equal protection of the laws. See State v. Chun, 194 N.J. 54 (2008) (State equal protection rights frequently broader because "this Court often requires the public authority to demonstrate a greater 'public need' than is traditionally required in construing the federal constitution."); State v. Marshall, 130 N.J. 109, 208-10 (1992) (State Constitution provides greater equal protection rights to criminal defendants facing the death penalty); State v. Gilmore, 103 N.J. 508, 522-23 (1986) (State Constitution imposes greater restriction than the federal Equal Protection Clause on using peremptory challenges to dismiss potential jurors for race-based reasons).

Particularly relevant here are New Jersey's decisions interpreting the State Cruel and Unusual Punishment Clause, which often arose in the context of this State's unique and more protective death penalty jurisprudence. See Ramseur, 106 N.J. at 190 ("Our State Constitution provides an additional and, where appropriate, more expansive source of protections against the arbitrary and nonindividualized imposition of the death penalty."); Gerald, 113 N.J. at 75-76 (rejecting Tison v. Arizona, 481 U.S. 137 (1987), and requiring evidence of intent to kill for imposition of death sentence); State v. Martini, 144 N.J. 603, 618 (1996) (departing from federal precedent to hold that State Constitution prohibits

individuals sentenced to death from waiving the right to post-conviction relief and gives counsel standing to challenge waiver); Marshall, 130 N.J. at 207-209 (repudiating McCleskey v. Kemp, 481 U.S. 279 (1987), and holding that, in New Jersey, a defendant complaining of racial disparities in capital sentences "surely has a right to raise a structural challenge to the constitutional fairness of the New Jersey Capital Punishment Act"). These cases not only shed light on New Jersey's historically distinct interpretation of its Cruel and Unusual Punishment Clause, which is at issue here; they are also particularly pertinent to this analysis based upon the Supreme Court's decisions in Graham and Miller, which make clear that juvenile LWOP is "akin to the death penalty" and must be "treated . . . similarly." Miller, 132 S. Ct. at 2466; accord Graham, 560 U.S. at 69-70.

Decision under the State Constitution is also especially appropriate because this case bears upon matters of particular State interest and local concern, Hunt, 91 N.J. at 363-68 (Handler, J., concurring) ("When particular questions are local in character and do not appear to require a uniform national policy, they are ripe for decision under state law."). Of course, criminal justice is, as both the United States and the Supreme Court have recognized, just such a matter of State interest. See United States v. Lopez, 514 U.S. 549, 561 n.3 (1995) ("States possess primary authority for defining and enforcing the criminal law."); Gerald, 113 N.J. at 76 ("Resort to a state-constitutional analysis is especially appropriate" in criminal

justice matters because they are "of particular state interest or local concern and do[] not require a uniform national policy.'"). And as noted, above, this Court has frequently recognized the importance of this interest in departing from Federal constitutional standards in matters of criminal justice.

Finally, New Jersey has long manifested particularly protective beliefs and attitudes with regard to juvenile justice. For example, the State legislature outlawed the death penalty for juveniles under age 18 fully two decades before the Supreme Court did so. See L. 1985, c. 478 (amending N.J.S.A. 2C:11-3 to prohibit the death penalty for juveniles); see also State v. Koskovich, 168 N.J. 448, 554 (2001) (Zazzali, J., concurring) (noting that the prohibition "expressed a generalization" that juveniles are less mature than adults). Likewise, New Jersey has led a national effort to reduce the number of juveniles held in secure detention. See New Jersey Juvenile Detention Alternatives Initiative (JDAI), 2011 Annual Data Report (Feb. 2012)[14] at ii (noting that New Jersey was the "only state to be designated a national model for detention reform" for juveniles); see also State in re A.C., 426 N.J. Super. 81, 95 (Ch. Div. 2012) (discussing New Jersey's participation in JDAI). And just recently, New Jersey passed sweeping juvenile justice reform: in a number of amendments to the criminal code, the State has raised the minimum age for waivers to adult court from 14 to 15; removed less serious offenses from the list

[14] Available at http://www.nj.gov/oag/jjc/pdf/JDAI-2011-Report-Annual.pdf.

of offenses permitting waiver; established a presumption that waived juveniles will be incarcerated with juveniles until age 21; provided a right to counsel and increased due process protections prior to transfer of juveniles from detention centers to adult prisons; prohibited punitive solitary confinement of juveniles; and required data collection and transparency with regard to incidents of State waiver and solitary confinement of juveniles. See L. 2015, c. 89; see also Zoe Schein, New Jersey Bill to Reform Youth Transfer, Waiver and Confinement Policies, NAT'L JUVENILE JUSTICE NETWORK (Sept. 15 2015).[15] The State's political branches, representatives of the beliefs and attitudes of the State populace, have thus shown exceptional sensitivity to the fact that adult punishment is often inappropriate in the case of juveniles. Indeed, New Jersey's new minimum age for waiver to adult court, 15, is the highest in the nation. See Dana Goldstein, New Jersey Moves to Keep Kids under 15 from Adult Court, THE MARSHALL PROJECT (June 25 2015).[16]

For these reasons, while Miller and Montgomery stop short, at least at this point, of requiring a broad categorical prohibition of LWOP for all juveniles under the Eighth Amendment, their holdings by no means prevent this Court from doing

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[15] Available at http://www.njjn.org/article/new-jersey-bill-to-reform-youth-transfer-waiver-and-confinement-policies.

[16] Available at https://www.themarshallproject.org/2015/06/25/new-jersey-moves-to-keep-kids-under-15-from-adult-court#.V4IkkfSnb.

so under its own Constitution. Instead, this Court should hold that, given New Jersey's unique history, tradition,

beliefs, and attitudes regarding juveniles in the criminal system all support extension of United States Supreme Court law to recognize a broad categorical ban on LWOP for juveniles under the New Jersey Constitution.

### *B. Juvenile LWOP Is Unconstitutional, under Both the State and Federal Constitutions, Based upon the Requisite Proportionality Analysis.*

The principles undergirding the Supreme Court decisions in Roper, Graham, Miller, and Montgomery render any sentence of life without parole unconstitutional for all juveniles, including in homicide cases, like this one. The reasons for such a categorical bar flow from the analysis set forth in those cases, including both that objective indicia of society's values reveal fundamental opposition to LWOP for juveniles, and that the United States Supreme Court's "own judgment," Graham, 560 U.S. at 61, supports a categorical bar because: (1) juveniles have diminished culpability; (2) LWOP is, accordingly, an inappropriately severe penalty for juveniles, (3) which lacks a penological justification in the case of juveniles; (4) a case-by-case approach is insufficient to protect the rights of juveniles; and (5) international law resoundingly condemns sentencing juveniles to LWOP. Where analysis under New Jersey law provides distinct support under these factors, it is incorporated below.

**1. Objective Indicia Show Opposition to Juvenile LWOP.**

Analysis of objective indicia often begins by counting the jurisdictions authorizing the sentencing practice in question. See Graham, 569 U.S. at 62; Atkins v. Virginia, 536 U.S. 304, 312 (2002). But this assessment is less helpful in the juvenile context because punishment of juveniles as adults depends upon two different sets of laws in each jurisdiction: the law of waiver or transfer of juveniles to adult court on the one hand, and the law of adult sentencing on the other. Miller, 132 S.Ct. at 2472-73; Graham, 560 U.S. at 66. Counting states where transfer and sentencing laws combine to authorize a particular penalty for juveniles thus "tells us nothing about the judgment these States have made regarding the appropriate punishment for such youthful offenders." Graham, 560 U.S. at 66 (emphasis in original). Accordingly, Graham outlawed LWOP sentences for juveniles convicted of nonhomicide offenses "even though 39 jurisdictions permitted that sentence." Miller, 132 S.Ct. at 2471; see Graham, 560 U.S. at 62.[17] Comer, of course, here respectfully submits that, as a matter of New Jersey law, the holding should be extended to all juvenile sentences, including sentences for homicide.

Nonetheless, "the direction of change" among the States, which is more

[17] Counting the number of states that authorize a given sentence becomes particularly problematic where de facto LWOP is at issue, since such sentences often incorporate, as in this case, still another source of law: that which determines consecutive versus concurrent sentencing. See N.J.S.A. 2C:44-5; Yarborough, 100 N.J. at 644-45.

significant than gross numbers, Roper, 543 U.S. at 567, shows increasing opposition to LWOP for juveniles. In the four years since the decision in Miller, 11 states have abolished juvenile LWOP for all offenses, see Da157; see also www.fairsentencingofyouth.org (noting recent legislative bans in Utah and South Dakota), and 23 States have changed their laws regarding juveniles convicted of homicide, making parole available after between 15 and 40 years, see The Sentencing Project, Juvenile Life Without Parole: An Overview, at 2 (2016).[18]

Also probative in the case of juveniles are "actual sentencing practices." Graham, 560 U.S. at 62. At present, 17 States have no individuals serving LWOP for offenses committed as juveniles, including New Jersey, discussed further below, and four States – Pennsylvania, Michigan, Louisiana, and California – account for approximately half of all juvenile LWOP sentences nationwide. See The Sentencing Project, Juvenile Life Without Parole, at 2.

Moreover, Graham instructs that, in determining whether objective indicia of society's values demonstrate a consensus against juvenile LWOP sentences, courts should estimate the ratio of individuals serving LWOP for offenses committed as juveniles against the approximate "base number" of juvenile convictions for the same offenses, i.e., the number of cases in which LWOP might potentially have

[18] Available at www.sentencingproject.org/wp-content/uploads/2015/12/Juvenile-Life-Without-Parole.pdf

been imposed. 560 U.S. at 65-66. The lower the percentage of those juveniles who receive LWOP sentences, the weaker the consensus that would render this a proportional sentence. Graham underscores that in constructing this ratio, courts must keep in mind that the present number of inmates sentenced to LWOP as juveniles actually reflects "many years" of sentencing practice, since "a juvenile sentenced to life without parole is likely to live in prison for decades." Id. at 65. So in selecting the base number of cases in which LWOP might have been imposed, courts should look at conviction data stretching back decades. In making the ultimate calculation, Graham also makes clear that exact, statistical precision is unnecessary, and that courts should instead look to whether, as a general matter, there is indication of consensus based upon the available data.[19]

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[19] For example, Graham found objective indicia of societal opposition to LWOP for juveniles in nonhomicide cases on the basis of an imprecise comparison: first, it identified the total number of relevant inmates nationwide, 123. Graham, 560 U.S. at 65. Then, it compared this number against the number of juvenile convictions in 2007 for aggravated assault (57,600), forcible rape (3,580), robbery (34,500), burglary (81,900), drug offenses (195,700), and arson (7,200). Id. Notably, the Court looked to 2007 because it was "the most recent year for which statistics [were] available." Id. The Court also acknowledged that "it is not certain how many of these numerous juvenile offenders were eligible for life without parole sentences." Id. As a result, the Court's "base number" was in fact a collection of numbers for only one year having no precise correlation with the 123 individuals who actually received the challenged sentence. Nonetheless, the Court concluded that even this high level of imprecision was sufficient to show that "in proportion to opportunities for its imposition, life without parole sentences for juveniles convicted of nonhomicide crimes is as rare as other sentencing practices found to be cruel and unusual." Id. at 66.

Nationwide, there are an estimated 2,570 individuals serving sentences of life without parole for offenses committed as juveniles.[20] Da158; accord Miller, 132 S.Ct. at 2477.

To determine the frequency of the sentence, this number must be measured against the number of cases in which LWOP might potentially have been imposed on a juvenile. From 1985 to 2013, the most recent year for which data is available, approximately 47,800 homicides were committed by juveniles.[21] Da159-60.

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[20] This number is imprecise for two reasons. First, of the 2,570 inmates serving LWOP for juvenile offenses, approximately 2,000 received mandatory sentences under applicable statutes. See Miller, 132 S.Ct. at 2477 (Roberts, J., dissenting). As noted above, the Supreme Court is clear that statutes authorizing and mandating juvenile LWOP are not reliable indicia of societal values because such laws represent the overlap of disparate sentencing and waiver codes. Id. at 2472; Graham, 560 U.S. at 66. So, ideally, a determination of societal values would look to instances in which the challenged sentence was deliberately imposed, i.e., as a matter of discretion. But of the 2,000 juveniles who received mandatory LWOP, it is unknowable how many would have received the same sentence as a discretionary matter. Accordingly, while 2,570 is used here for purpose of argument, (Roberts, J., dissenting) ("The parties agree that nearly 2,500 prisoners are presently serving life sentences without the possibility of parole for murders they committed before the age of 18.").

[21] The base number 47,800 is likely too low for several reasons. Most generally, it refers only to homicide offenses. While LWOP is impermissible for nonhomicide offenses post-Graham, some of the juveniles currently serving LWOP sentences may reflect pre-Graham practices that have yet to be corrected. Additionally, the 47,800 number is too low because the most accurate data would go further in both directions, including homicides committed both since 2013, and before 1985. Nonetheless, the 47,800 figure will suffice to make the point that imposition of LWOP on juveniles is an incredible rarity. The most accurate base number - something well above 47,800 - would further shrink society's apparent willingness to impose juvenile LWOP.

Dividing the number of discretionary LWOP sentences for juveniles convicted of homicides, 2,570, by the number of juvenile homicides over the approximately overlapping period, this number is doubtless too high, inflating society's apparent willingness to impose LWOP sentences upon juveniles.

Second, the 2,570 number represents formal but not de facto LWOP sentences. The number of juveniles serving de facto LWOP nationwide is unknown. But the unavailability of this data does not diminish the argument here. LWOP and de facto LWOP are constitutionally indistinguishable, so objective indicia of society's opposition to juvenile LWOP must be understood to signal the same opposition to juvenile de facto LWOP.

47,800, yields a percentage of 5.37%, or roughly one out of 19 cases. This number shows a clear moral consensus against juvenile LWOP.

In New Jersey, the evidence is even stronger. As noted by the trial court below, the number of individuals expressly sentenced to LWOP for offenses committed as juveniles in New Jersey is zero. This is powerful proof that New Jersey does not believe in imposing LWOP sentences on juveniles and thus has a "significantly different attitude . . . from that prevailing nationwide." Ramseur, 106 N.J. at 169. Furthermore, de facto LWOP is also rarely imposed on New Jersey's youth. Because New Jersey tabulates neither the number of juvenile de facto LWOP sentences nor the cases in which such a sentence might have been imposed,

this calculation is necessarily inexact, but available data nevertheless shows that they are a statistical rarity. Specifically, there are 17 individuals in New Jersey sentenced to 45 years or more who were 19 or younger at sentencing; this permits of at least an inference that, as an upper limit, there are 17 individuals in the State who might have received sentences of juvenile LWOP.[22] Da161-63. To approximate the number of cases in which de facto LWOP might have been imposed on a juvenile, Comer here uses the number of juveniles convicted of homicide offenses from 1990[23] to November 2015: 488.[24] Da164-91. These numbers yield a percentage of 3.48%, meaning that only one out of every 29 cases in which juveniles who could have been sentenced to LWOP in fact resulted in such sentences. Though likely overstating the percentage of juveniles sentenced to de facto LWOP, even this number suggests that such a sentence is rarely imposed in New Jersey. In sum, then, at the national level and even more so in New Jersey,

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[22] The number 17 is likely too high because some of the individuals sentenced at 18 and 19 may not have been juveniles at the time of their offenses.

[23] 1990 is the earliest year for which data are available on the New Jersey Attorney General's website. Da165.

[24] The number 488 is likely too low (and the corresponding percentage of juvenile offenders sentenced to LWOP too high) because (1) it does not include data from before 1990, and (2) it refers only to homicide offenses when, in fact, some of those sentenced to de facto LWOP as juveniles in New Jersey may have been sentenced to consecutive terms in nonhomicide cases. See, e.g., Zuber, 442 N.J. Super. at 614 (defendant sentenced to 110 years, 55 without parole eligibility, for juvenile nonhomicide offenses).

juveniles are sentenced to LWOP with an infrequency that shows objective opposition to the practice.

**2. The Court's "Own Judgment" Uniformly Rejects LWOP and De Facto LWOP for All Juveniles.**

Supreme Court precedent also dictates a finding that LWOP and de facto LWOP are disproportionate sentences for all juveniles under each of the factors that make up the Court's "own judgment." New Jersey law both incorporates these principles and provides additional bases for a categorical bar.

***a. Juveniles Are Categorically Less Culpable Than Adults.***

As noted above, the Supreme Court recognizes "[t]hree general differences between juveniles under 18 and adults [which] demonstrate that juvenile offenders cannot with reliability be classified among the worst offenders." Roper, 543 U.S. at 569; accord Miller, 132 S.Ct. at 2464. In reaching this conclusion, the Court in Roper, Graham, and Miller, relied on an overwhelming consensus in the fields of psychology and neuroscience, as well as "what 'any parent knows.'" Miller, 132 S.Ct. at 2464 (quoting Roper, 543 U.S. at 569).[25]

[25] The Court has noted that the relevant science and social science are still developing, providing new and increasing support for the diminished culpability of juveniles. See Miller, 132 S.Ct. at 2465 n.5 ("science and social science . . . have become even stronger"); Graham; 560 U.S. at 68 ("[D]evelopments in psychology and brain science continue to show fundamental differences between juvenile and adult minds.").

First, juveniles are categorically less mature and more irresponsible relative to adults, "qualities that often result in impetuous and ill-considered actions and decisions." Roper, 543 U.S. at 569 (internal citation omitted); accord Miller, 132 S.Ct. at 2464; Graham, 560 U.S. at 69-70. New Jersey courts have long recognized this fact as relevant to proportional sentencing of juveniles. See Koskovich, 168 N.J. at 554 (Zazzali, J., concurring) ("For what we find offensive about the execution of minors is not merely that they are 'young,' chronologically-speaking, but also that they tend to be immature. This Court has explained that '[i]n determining a defendant's 'relative' youth, a jury must look beyond chronological age to considerations of defendant's overall maturity.'") (quoting State v. Bey, 129 N.J. 557, 612 (1992)).

Scientific research provides two bases for this immaturity. One is the "rapid and dramatic increase in dopaminergic activity within the socioemotional system around the time of puberty," making thrill-seeking behavior irresistible to young people. Laurence Steinberg, et al., Age Differences in Sensation Seeking and Impulsivity as Indexed by Behavior and Self-Report: Evidence for a Dual Systems Model, 44 DEV. PSYCHOL. 1764, 1764 (2008); Kathryn Monahan, et al., Juvenile Justice Policy and Practice: A Developmental Perspective, 44 CRIME & JUSTICE 577, 586 (2015) ("[G]reater neural activity during adolescence" has been observed in "numerous fMRI [functional magnetic resonance imaging] studies.").

Second is the incomplete development of the juvenile brain's frontal lobes, resulting in poor impulse control and an inability to foresee consequences. Miller, 132 S.Ct. at 2465 n.5 ("'It is increasingly clear that adolescent brains are not yet fully mature in regions and systems related to higher-order executive functions such as impulse control, planning ahead, and risk avoidance'"); accord Laurence Steinberg, A Social Neuroscience Perspective on Adolescent Risk-Taking, 28 DEV. REV. 78, 83 (2008).[26] These characteristics — heightened thrill-seeking with poor impulse control — combine catastrophically, helping to explain why, as the Supreme Court recognizes, "'adolescents are overrepresented statistically in virtually every category of reckless behavior.'" Roper, 543 U.S. at 569.

Second, "juveniles are more vulnerable or susceptible to negative influences and outside pressures, including peer pressure." Roper, 543 U.S. at 569; accord Miller, 132 S.Ct. at 2464; Graham, 560 U.S. at 69-70. Adolescence is a time of great insecurity, in which juveniles seek conformity to avoid ostracism and maintain esteem relative to their peers. Steinberg, Social Neuroscience, 28 DEV. REV. at 92. This is problematic because, within the context of adolescent peer groups, "risky experimentation is part of identity formation for many teens" such that "much adolescent criminality is . . . not indicative of bad character or criminal

[26] This, too, is evident from "structural imaging studies." Laurence Steinberg, The Influence of Neuroscience on U.S. Supreme Court Decisions about Adolescents' Criminal Culpability, 14 NEUROSCIENCE 513, 516 (2013).

predisposition." Elizabeth S. Scott & Laurence Steinberg, Social Welfare and Fairness in Juvenile Crime Regulation, 71 LA. L. REV. 35, 64 (2010); accord Miller, 132 S.Ct. at 2465 n.5 ("'Numerous studies post-Graham indicate that exposure to deviant peers leads to increased deviant behavior and is a consistent predictor of adolescent delinquency'"). Indeed, it has been empirically demonstrated that, "rates of illegal behavior soar so high during adolescence that participation in delinquency appears to be a normal part of teen life." Terrie E. Moffitt, Adolescence-Limited and Life-Course-Persistent Antisocial Behavior: A Developmental Taxonomy, 100 PSYCH. R. 674, 675 (1993).

Moreover, juveniles "have limited 'contro[l] over their own environment' and lack the ability to extricate themselves from horrific, crime-producing settings," Miller, 132 S.Ct. at 2464 (quoting Roper, 543 U.S. at 570), all of which means that juveniles generally cannot escape exposure, and pressure, from peers for whom deviant behavior is unexceptional. Roper recognized that, for this reason, adolescents "have a greater claim than adults to be forgiven for failing to escape negative influences in their whole environment." Roper, 543 U.S. at 570.

Third, youth is an era marked by transitory, developing identity, meaning that "'[f]or most teens, [risky or antisocial] behaviors are fleeting; they cease with maturity as individual identity becomes settled.'" Roper, 543 U.S. at 570; accord Miller, 132 S.Ct. at 2464. Research suggests that identity formation is incomplete

until the late teens or early twenties. Steinberg, Social Neuroscience, 28 DEV. REV. at 94. This diminishes culpability because it means that the actions of juveniles cannot with certainty be attributed to their characters; instead, juvenile behavior more often reflects "the impetuousness and recklessness that may dominate in younger years." Johnson v. Texas, 509 U.S. 350, 367 (1993).

That juveniles overwhelmingly age out of criminal behavior has also been amply demonstrated by empirical research which shows that between a quarter and half of all juvenile offenders are "immediate desisters," meaning individuals whose first criminal offense is also their last. See Maynard L. Erickson, Delinquency in a Birth Cohort: A New Direction in Criminological Research, 64 J. CRIM. L. & CRIMINOLOGY 362, 364 (1973) (citing study finding immediate desistance rate at 46%); see also Megan C. Kurlycheck, et al., Long-Term Crime Desistance and Recidivism Patterns – Evidence from the Essex County Felony Study, 50 CRIMINOLOGY 71, 98 (2012) (citing two studies finding immediate desistance at between 22-27% and 54-59%, respectively). Indeed, research overwhelmingly shows that criminal careers are short: between five and 15 years, regardless of offense-type. See Alex R. Piquero, et al., The Criminal Career Paradigm, 30 CRIME & JUSTICE 359, 435 (2003). Thus, the majority of juvenile criminality is limited to adolescence, a fact further reinforced by findings that juvenile desistance from crime by the mid-to-late 20s approaches 85-90%. See Moffit, Adolescence-

Limited and Life Course-Persistent, 100 PSYCH. R. at 680; Steinberg, The Influence of Neuroscience, 14 NEUROSCIENCE at 516.

For these reasons, the Supreme Court has held juvenile offenders "categorically less culpable than the average criminal." Roper, 543 U.S. at 567. Importantly, none of the relevant science, social science, or related holdings by the Supreme Court are "crime-specific;" Miller expressly noted that "[t]hose features [which make juveniles different from adults] are evident in the same way, and to the same degree, when . . . a botched robbery turns into a killing," 132 S.Ct. at 2465 — precisely what happened here. Culpability is thus, as a matter of constitutional law, diminished in Comer's case, as it is for all juvenile offenses. Miller, 132 S.Ct. at 2465.

***b. Life without Parole Is Harsh Punishment for Juveniles.***

Supreme Court precedent also holds that sentencing juveniles to LWOP is extremely severe punishment. In Graham, the Supreme Court held that under the Eighth Amendment, juvenile LWOP must be considered the equivalent of execution because both "mean[] denial of hope," 560 U.S. at 69-70, and "no chance for fulfillment outside prison walls, no chance for reconciliation with society," id. at 79. Graham also recognized that LWOP is particularly harsh when imposed upon a juvenile because a younger offender necessarily serves "more

years and a greater percentage of his life in prison than an adult offender." Id. at 570; accord Miller, 132 S.Ct. at 2466. Furthermore, these years are likely to be spent with reduced access to the activities and programs that can give inmates a sense of self-worth or meaning. See Graham, 560 U.S. at 74 ("[D]efendants serving life without parole sentences are often denied access to vocational training and other rehabilitative services[.]") (internal citation omitted).

In short, the Supreme Court recognizes juvenile LWOP as a uniquely terrible punishment. That is, it means an entire lifetime without hope, prospect for fulfillment, or integration into society, a sentence which, given the high possibility of reform post-adolescence, amounts to tremendous waste. For these reasons, juveniles LWOP is cruel punishment indeed, regardless of the crime committed.

***c. Sentencing Juveniles to LWOP Serves No Penological Purpose.***

There are four recognized purposes for sentencing: retribution, deterrence, incapacitation, and rehabilitation. Graham, 560 U.S. at 71. Graham undertook a comprehensive analysis of these purposes in the context of juvenile nonhomicide offenders sentenced to LWOP, concluding that "[none] provides an adequate justification." Id. But Graham's holding was predicated on facts about juveniles and LWOP generally; thus as the Court recognized in Miller, "Graham's reasoning

implicates any life-without-parole sentence imposed on a juvenile." 132 S.Ct. at 2465 (emphasis added).

In Montgomery, the Court clarified that only the incapacitation rationale could ever justify LWOP in the case of a juvenile homicide offender. 136 S.Ct. at 734. But this rationale requires a finding that the juvenile offender is "incorrigible," though the Court, and abundant research, express great skepticism that courts can make this finding reliably. Graham, 560 U.S. at 72-73. Thus, really, none of the recognized purposes of punishment support juvenile LWOP, even in homicide cases, as is discussed in further detail, below.

Retribution is "the interest in seeing that the offender gets his 'just deserts.'" Atkins, 536 U.S. at 319. Under a theory of retribution, punishment "must be directly related to the personal culpability of the criminal offender." Graham, 560 U.S. at 71; Atkins, 536 U.S. at 319 ("[T]he severity of the appropriate punishment necessarily depends on the culpability of the offender."). But as noted above, the culpability of juveniles, for all offenses, is categorically diminished because of their inherent cognitive limitations. Accordingly, as the Supreme Court has recognized, "'the case for retribution is not as strong with a minor as with an adult.'" Graham, 560 U.S. at 71.

Deterrence is the idea that the specter of punishment will influence the "cold

calculus that precedes the decision" to commit an offense.[27] Atkins, 536 U.S. at 319. In the context of juvenile offenders, the Supreme Court has shown that the relevant question is whether a given punishment will deter juveniles in particular. See Graham, 560 U.S. at 72 (considering only whether LWOP was likely to deter juveniles); Roper, 543 U.S. 571-72 (considering only whether capital punishment was likely to deter juveniles). On this question, the Court has held:

> "[T]he same characteristics that render juveniles less culpable than adults suggest . . . that juveniles will be less susceptible to deterrence." Because juveniles' "lack of maturity and underdeveloped sense of responsibility … often result in impetuous and ill-considered actions and decisions," they are less likely to take a possible punishment into consideration when making decisions.
> [Id. at 571-72.]

And for the juveniles sentenced to LWOP, parole ineligibility has the opposite of a deterrent effect because, "[a] young person who knows that he or she has no chance to leave prison before life's end has little incentive to become a responsible individual." Graham, 560 U.S. at 79. Thus, sentencing juveniles to LWOP will not deter juvenile crime.

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[27] Deterrence, of course, "incorporates two 'interrelated but distinguishable concepts,' the sentence's 'general deterrent effect on the public [and] its personal deterrent effect on the defendant.'" State v. Fuentes, 217 N.J. 57, 79, (2014) (quoting State v. Jarbath, 114 N.J. 394, 405 (1989)). But in contemplating extremely long sentences, any specific deterrence benefit is subsumed by the incapacitation rationale, i.e., the goal of deterring the specific individual's future offending is achieved by keeping him incarcerated.

Incapacitation justifies punishment to remove an offender from society for the public's safety; in the case of juveniles sentenced to LWOP, this justification "requires the sentencer to make a judgment that the juvenile is incorrigible." Id. at 72-73. Montgomery makes clear that, under Miller, a factual finding of just such incorrigibility (alternatively denoted "irreparable corruption," Roper, 543 U.S. at 573; Miller, 132 S.Ct. at 2469, and "irretrievably depraved character," Roper, 543 U.S. at 570; Graham, 560 U.S. at 68) is the only rationale that might justify juvenile LWOP — a sentence of life without even the possibility of ever being released — and that without a finding of incorrigibility, such a sentence is unconstitutional. 136 S.Ct. at 735 (States are not "free to sentence a child whose crime reflects transient immaturity to life without parole. To the contrary, Miller established that this punishment is disproportionate under the Eighth Amendment."); Veal v. State, __S.E.2d__, 2016 WL 1085360, at *9 (Ga. Mar. 21, 2016) ("Thus, Montgomery emphasizes that a life without parole sentence is permitted only in 'exceptional circumstances,' for 'the rare juvenile offender who exhibits such irretrievable depravity that rehabilitation is impossible'") (emphasis in original). That is to say, juvenile offenders should not, unless they are demonstrably incorrigible, be sentenced to life without the possibility of release. State v. Lyle, 854 N.W.2d 378, 400 (Iowa 2014) (holding that, where incorrigibility cannot be demonstrated, and the juvenile offender is therefore

capable of reform, "the incapacitation objective can no longer seriously be served, and . . . [juvenile LWOP] becomes 'nothing more than the purposeless and needless imposition of pain and suffering.'").

But the fact that adolescent identities are transient, with most juvenile criminality limited to adolescence, means that no such determination is possible at the time of sentencing. Indeed, the Supreme Court summarized the social science research in Graham and held, "'[i]t is difficult even for expert psychologists to differentiate between the juvenile offender whose crime reflects unfortunate yet transient immaturity, and the rare juvenile offender whose crime reflects irreparable corruption.'" Id. at 68.

This has been demonstrated in repeated empirical trials. Thus, for example, the factors commonly used to predict criminality — poverty, childhood abuse and neglect, and exposure to violence — are strong predictors of initial criminality, but they are very poor predictors of persistence in crime. See John H. Laub, Trajectories of Change in Criminal Offending: Good Marriages and the Desistance Process, 63 AM. SOCIOL. R. 225 (1998); Piquero, et al., Criminal Career Paradigm, 30 CRIME & JUSTICE at 470-71 ("As many as one-half to two-thirds of [chronic offender] predictions have been shown to be incorrect."). Nor, as empirical studies show, does the seriousness or frequency of juvenile offending provide reliable evidence of which juveniles will remain dangerous. Moffitt,

Adolescence-Limited and Life-Course-Persistent, 100 PSYCH. R. at 678 ("[M]easures of the frequency or seriousness of adolescent offending will not discriminate very well between life-course-persistent and adolescence-limited delinquents."); John H. Laub & Robert J. Sampson, Understanding Desistance from Crime, 28 CRIME & JUSTICE 1, 21 (2001) ("[O]ur study found that a host of traditional individual-difference factors were at best weakly predictive of eventual desistance.").

Thus, for example, one longitudinal study of juvenile murder offenders showed that expert predictions that particular juveniles would re-offend were wrong a staggering 87% of the time. Rolf Loeber, et al., The Prediction of Violence and Homicide in Young Men, 73 J. CONSULTING AND CLINICAL PSYCHOL. 1074, 1074-75 (2005). Another longitudinal study found that 86% of juveniles who scored in the top 20th percentile on diagnostic tests measuring psychopathy did not display psychopathic tendencies by age 24. See, e.g., Donald R. Lynam, et al., Longitudinal Evidence That Psychopathy Scores in Early Adolescence Predict Adult Psychopathy, 116 J. ABNORMAL PSYCHOL. 155,

160, 162 (2007).[28]

These predictive failures make sense in light of what social science research has uncovered about desistance from crime (i.e., "exiting a criminal career"), which "is typically tied to the acquisition of meaningful bonds to conventional adult individuals and institutions, such as work, marriage and family, and community institutions." Jeffery T. Ulmer & Darrell Steffensmeier, The Age and Crime Relationship: Social Variation, Social Explanations, in THE NURTURE VERSUS BIOSOCIAL DEBATE IN CRIMINOLOGY: ON THE ORIGINS OF CRIMINAL BEHAVIOR AND CRIMINALITY 391 (Kevin M. Beaver, et al., eds. 2015). Relatedly, desistance is also strongly correlated with "disengagement from [] deviant peers." Laub & Sampson, Understanding Desistance, 28 CRIME & JUSTICE at 28. But, of course, no sentencing court can predict which juvenile offenders will, for example, enter into positive, stable relationships, or distance themselves from peer groups. As the Supreme Judicial Court of Massachusetts has expressed it, "Simply put, because the brain of a juvenile is not fully developed,

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[28] See also Brief of American Psychological Association et. al. As Amici Curiae in Support of Respondent, Roper v. Simmons, 543 U.S. 551 (2005), 2004 WL 1636447, at *44-48 (citing studies showing that even psychopathic tendencies in youth are unreliable indicators of future propensity for criminality); John F. Edens, et al., Assessment of "Juvenile Psychopathy" and Its Association with Violence: A Critical Review, 19 BEHAV. SCI. & L. 53, 73 (2001) (existing studies "provide little support for the argument that psychopathy during adolescence is a robust predictor of future violence, particularly violence that occurs beyond late adolescence").

either structurally or functionally, by the age of eighteen, a judge cannot find with confidence that a particular offender, at that point in time, is irretrievably depraved." Diatchenko v. Dist. Att. for Suffolk Dist., 1 N.E.3d 270, 284 (Mass. 2013).

Finally, as to rehabilitation, sentencing juveniles to LWOP "forswears altogether the rehabilitative ideal." Graham, 560 U.S. at 74. Sending a juvenile to prison for life, without the possibility of release, sends the message that improvement of his character will serve no purpose — indeed, as noted above, this message is itself a disincentive to rehabilitation. Id. at 79. Moreover, as also discussed above, the LWOP designation can be a barrier to rehabilitation because it may foreclose access to valuable programs in prison. Id. at 74.

In sum, LWOP and de facto LWOP are unjustifiable in the case of juveniles. Because "[a] sentence lacking any legitimate penological justification is by its nature disproportionate to the offense," id. at 71, the New Jersey Constitution cannot permit imposition of these sentences, but must allow for the possibility of release at some point.

***d. A Case-by-Case Approach Is Insufficient to Protect the Rights of Juveniles.***

As part of its proportionality analysis, the Supreme Court asks whether a case-by-case approach would suffice to alleviate constitutional concerns, or

whether instead the risk of error is so great as to require categorical protection. See Graham, 560 U.S. at 74-75; Roper, 543 U.S. at 572-73; Atkins, 536 U.S. at 320-21; Zuber, 442 N.J. Super. at 621 (citing Graham). The Court's decision in Graham is dispositive: Graham held that a case-by-case approach cannot be trusted to protect juveniles against disproportionate sentencing for three reasons. First, as previously discussed, the transience of juvenile identities means that even psychiatric experts are unable to identify incorrigibility. Graham, 560 U.S. at 73. Accordingly, any faith in the ability of courts to determine incorrigibility at the time of an individual sentencing would be misguided. Second, as Graham makes clear, a categorical rule would eliminate the risk that any juvenile would lose his "chance for fulfillment outside prison walls" based on "demonstrate[d] maturity and reform," which chance creates a powerful incentive to rehabilitation for all juvenile offenders. Id. at 79. Third, and finally:

> [T]he features that distinguish juveniles from adults also put them at a significant disadvantage in criminal proceedings. Juveniles mistrust adults and have limited understandings of the criminal justice system and the roles of the institutional actors within it. They are less likely than adults to work effectively with their lawyers to aid in their defense. Difficulty in weighing long-term consequences; a corresponding impulsiveness; and reluctance to trust defense counsel, seen as part of the adult world a rebellious youth rejects, all can lead to poor decisions[.]
> [Id. at 78.]

The Supreme Court favors categorical bars in circumstances like this, where

a class of defendants is inherently compromised in assisting in its own defense. See, e.g., Atkins, 536 U.S. at 320-21.[29] For these reasons, a case-by-case approach cannot adequately protect the rights of juveniles, and a categorical ban against LWOP is necessary.

***e. International Law Rejects LWOP for Juveniles.***

Proportionality analysis, finally, entails consideration of global practices because "[t]he opinion of the world community . . . does provide respected and significant confirmation for our own conclusions." Roper, 543 U.S. at 578. In this case, the international law evidence could not be plainer: no other country in the world imposes LWOP on juvenile offenders. See Connie de la Vega and Michelle Leighton, Sentencing Our Children to Die in Prison: Global Law and Practice, 42 U.S.F. L. REV. 983, 999-1004 (2008). This is stark evidence of a global, moral consensus against sentencing juveniles to LWOP.

For this reason too, proportionality analysis offers convincing reasons for a categorical ban against sentencing juveniles to LWOP. Indeed, any of the above would support such a prohibition; that each and all of them do provides this Court with abundant authority to implement the categorical bar, particularly under New

[29] Comer's case is an unfortunate example: Comer's decision to go to trial resulted in a sentence of de facto LWOP, while one co-defendant pleaded guilty and received a sentence which resulted in his parole eligibility after 17 years.

Jersey's more expansive interpretation of its Cruel and Unusual Punishment Clause. As a result, the decision of the trial court, below, should be modified to include a categorical ban on LWOP for juveniles.

## III. Graham v. Florida Forbids Life without Parole and De Facto Life without Parole for Juveniles Who Neither Kill Nor Intend to Kill.

Both the New Jersey and Federal Constitutions also compel a narrower categorical bar against LWOP and de facto LWOP under circumstances where juvenile homicide offenders neither kill nor intend to kill. This holding flows directly from two elements of Graham: its proportionality analysis, and its equation of juvenile LWOP with the death penalty. And, because the evidence showed that Comer neither killed nor intended to kill, Da3-4, his sentence should be vacated for this reason, as well.

Under traditional proportionality analysis, above, all of the factors supporting a broad ban on LWOP for juveniles necessarily apply to the subset of juveniles who neither kill nor intend to kill. But Graham shows that, for several reasons, LWOP is even less appropriate for juveniles who neither kill nor intend to kill. First, critical to Graham's ultimate holding was the recognition that this sub-group is less culpable because "a juvenile offender who did not kill or intend to kill has a twice diminished moral culpability." Id. at 69. Second, from this premise, Graham held that, because "'[t]he heart of the retribution rationale" is "the

personal culpability of the criminal offender,'" id. at 71, retribution is "even weaker" where a juvenile did not kill or intend to kill, id. Furthermore, the deterrence rationale is also greatly weakened in this context: since homicides in which the juvenile neither kills nor intends to kill are by nature "unintended consequences" of other offenses, see Dean v. United States, 556 U.S. 568, 575 (2009), there is no "'cold calculus that precedes the decision' of other potential murderers." Atkins, 536 U.S. at 319; accord Enmund v. Florida, 458 U.S. 782, 799 (1982) ("'punishment can serve as a deterrent only when murder is the result of [intentional action]'").

Furthermore, Graham provides an independent basis for a ban on LWOP for juveniles who neither kill nor intend to kill. By equating juvenile LWOP to capital punishment, Graham expressly incorporates the canon of death penalty law into the realm of juvenile LWOP. 560 U.S. at 70; Miller, 132 S.Ct. at 2467.

Indeed, the Miller Court explained that Graham's categorical bar "mirrored a proscription first established in the death penalty context — that the punishment cannot be imposed for any nonhomicide crimes," citing the capital punishment law of Kennedy, 554 U.S. 407, and Coker, 433 U.S. 584, which bar the death penalty for nonhomicides. Miller, 132 S.Ct. at 2467. In Miller, this incorporation of the capital punishment canon was an express, independent basis for the Court's decision prohibiting mandatory LWOP for juveniles: because the Court had long

held that "a statute mandating a death sentence for first-degree murder violated the Eighth Amendment" under Woodson v. North Carolina, 428 U.S. 280 (1976), so, too, Miller held, is individualized sentencing required prior to imposition of juvenile LWOP. Miller, 132 S.Ct. at 2467.

The significance of importing the law of capital punishment to the juvenile LWOP context is obvious when one looks to the Supreme Court's, and this Court's, felony murder jurisprudence. In Enmund, 458 U.S. 782, and Tison, 481 U.S. 137, the Supreme Court set the parameters for constitutional imposition of the death penalty for those who neither kill nor intend to kill: capital punishment is permissible only if the defendant was a "major" participant in the underlying felony and exhibited "reckless indifference to human life", Tison, 481 U.S. at 158. And New Jersey's cruel and unusual punishment jurisprudence places even greater weight on the intent to kill. Breaking with Tison, 481 U.S. 137, this Court in Gerald, 113 N.J. at 85, held that the death penalty was forbidden under the State Constitution absent proof of specific intent to kill.[30] Gerald held:

> The failure to distinguish, for purpose of punishment, those who intend the death of their victim from those who do not does violence to the basic principle . . . that "the more purposeful the conduct, the

[30] In the wake of Gerald, the Constitution was amended to specifically authorize the death penalty in cases of intent to cause serious bodily injury that resulted in death. State v. Yothers, 282 N.J. Super. 86, 92 (App. Div. 1995). That, of course, is of no moment here, where Comer intended neither death nor serious bodily injury.

> more serious is the offense, and, therefore, the more severely it ought to be punished."
> [Id. at 85 (quoting Tison, 481 U.S. at 156).]

Incorporation of Federal death penalty law thus entails prohibition of LWOP for juveniles who neither kill nor intend to kill unless the State can prove "major participation" in a felony showing "reckless indifference" to life; and under New Jersey law, juvenile LWOP requires proof of specific intent to kill (or at the very least to cause serious bodily injury resulting in death). Neither are present here: Comer was a participant in a robbery that unexpectedly turned fatal when a codefendant spontaneously shot the victim out of frustration that, "he didn't have no money;" Comer, at the time, stood still, his hands empty. Da3-6.[31]

Nonetheless, the court below rejected Comer's claim that Graham prohibits LWOP for juveniles who neither kill nor intend to kill. Pa91-92. But it did so without undertaking any proportionality analysis whatsoever; instead, the trial court misinterpreted Comer's claim as suggesting that a broad categorical bar against juvenile LWOP in all cases was necessitated by the holding in Graham; to this the Court replied, "Graham only created a categorical ban on juvenile life without parole sentences for non-homicide crimes. Since Defendant Comer

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[31] Significantly, Comer's homicide conviction fell under New Jersey's felony murder statute, which does not require proof of intent to kill: "a wholly unintended killing is murder if it results from the commission of the underlying felony." State v. Darby, 200 N.J. Super. 327, 331 (App. Div. 1984).

committed a homicide crime, Graham's ultimate holding has little to no bearing on the analysis of the constitutionality of Defendant Comer's sentence." Pa91. Of course, this was not Comer's argument at all. Rather, Comer focused on Graham's holding that "a juvenile offender who did not kill or intend to kill has a twice diminished moral culpability," 560 U.S. at 69, which holding was not, by its terms, limited to the nonhomicide context.

Likewise, the court below found that Comer's claim was foreclosed by the Supreme Court's resolution of defendant Kuntrell Jackson's claim in Miller, because Jackson was convicted only of felony murder, and "[The Supreme Court] could have easily disposed of Jackson's petition by articulating that Jackson's sentence was unconstitutional per Graham." Pa91. But, there was a question as to the evidence of intent in Jackson's case. Miller, 132 S.Ct. at 2461 (parties disputed whether Jackson manifested intent to kill based on comments made during robbery). Of course, no such factual conflict is present here, making this case a far more appropriate one for constitutional adjudication. See, e.g., Tennessee v. Garner, 471 U.S. 1, 22 (1985) (finding that "uncertain state of the record" functioned to "preclude any consideration" of constitutionality of law enforcement policy on use of deadly force).

Furthermore, in Miller, the Court vacated Jackson's sentence and remanded with instructions for him to be resentenced after an evidentiary hearing. 132 S.Ct.

at 2475. Thus, it would have been premature for the Court to find that Jackson could not be resentenced to life without parole. As Justice Breyer explained in his concurrence, "if the State continues to seek a sentence of life without the possibility of parole for Kuntrell Jackson, there will have to be a determination whether Jackson 'kill[ed] or intend[ed] to kill[.]'" Id. at 2475 (Breyer, J., concurring) (internal citation omitted). Contrary to the trial court's decision below then, the Supreme Court's resolution of Jackson's case does not suggest a rejection of the rule Comer seeks.

In sum, the language and reasoning of Graham establish that a sentence of life without parole for a juvenile who neither killed nor intended to kill would violate both the United States and the New Jersey Constitutions. For this reason too, the lower court decision should be modified to preclude the imposition of a sentence of life without parole for Comer.

## IV. Comer's Sentence Was Imposed in Violation of Miller v. Alabama and Montgomery v. Louisiana.

Even if this Court is not persuaded that State and federal law bar Comer's sentence of de facto life without parole, Comer's sentence must still be vacated, in order to satisfy the dictates of Miller and Montgomery. As the trial court found, Comer's sentence of de facto LWOP was imposed without consideration of the

mitigating factors of youth, and without the sentencing court determining that Comer is, in fact, incorrigible.

In Miller, the Supreme Court announced that juveniles convicted of homicide offenses cannot be sentenced to LWOP, if at all, without consideration of "chronological age," "immaturity, impetuousity," "failure to appreciate risks and consequences," "family and home environment," "the circumstances of the homicide offense, including the extent of his participation in the conduct and the way that familial and peer pressures may have affected him," as well as "the possibility of rehabilitation." 132 S.Ct. at 2468. The Court directed that these factors be given significant weight, adding, "appropriate occasions for sentencing juveniles to this harshest possible penalty will be uncommon." Id. at 2469; see Riley, 110 A.3d at 1214 ("[Miller] suggests that the mitigating factors of youth establish, in effect, a presumption against imposing a life sentence without parole on a juvenile offender[.]").

And in Montgomery, the Court clarified that sentencing courts must consider these factors to determine whether the juvenile's offense reflects "transient immaturity" or "irreparable corruption." 136 S.Ct. at 734. Only in the latter case, the Court held, might LWOP ever be imposed on a juvenile under the Eighth Amendment, and thus Montgomery requires an express finding of incorrigibility prior to sentencing a juvenile to LWOP or de facto LWOP. Id.; see also State v.

Valencia, __P.3d__, 2016 WL 1203414, at *3 (Ariz. Ct. App. Mar. 28, 2016) ("[T]he court can impose a natural-life sentence only if it concludes that the juvenile defendant's crimes reflect permanent incorrigibility."); People v. Nieto, __N.E.3d__, 2016 WL 1165717, at *10 (Ill. App. Ct. Mar. 23, 2016) ("Life in prison without parole is disproportionate unless the juvenile defendant's crime reflects irreparable corruption."). Montgomery further reinforced that "appropriate occasions" for imposition of juvenile LWOP would be few, noting repeatedly that LWOP is disproportionate "for all but the rarest of children." 136 S.Ct. at 726; accord id. at 734.

Comer's sentence was preceded by neither the process envisioned in Miller, nor the finding of incorrigibility mandated in Montgomery. At Comer's sentencing, no evidence of any kind was presented; certainly there was not the showing addressed to Comer's youth that Miller and Montgomery mandate; even argument with regard to that issue was superficial and conclusory. Da23-24 ("certainly we can glean from his presentence report he . . . was a juvenile at the time of his arrest[;]" "I'm going to ask the Court to consider the years - how old he was at the time of the offense, that being seventeen years old and a juvenile[;]"). Instead, counsel focused primarily on whether concurrent sentencing was necessary to avoid unfair sentencing disparity relative to co-defendant Harrison. Da20 ("[W]hen I consider the amount of time that Mr. Comer is going to

receive . . ., I try to think about the disparity of the acts between Dexter Harrison and James Comer."). And, while counsel also argued under statutory mitigating factor 13, N.J.S.A. 2C:44-1b(13) that "the conduct of a youthful defendant was substantially influenced by another person more mature than the defendant and the way that familial and peer pressures may have affected him . . . . [a]nd . . . the possibility of rehabilitation," this concerns a very narrow issue associated with youth: the potential influence of older accomplices, and falls markedly short of the depth and breadth of factors required under Miller.

Thus, the Court heard neither proof nor argument regarding Comer's physiological incapacity for reasoned judgment or impulse control; it learned nothing about whether Comer's home life was affected by negligence, violence, or dysfunction — factors the Miller Court upheld as "'particularly relevant'" Id. at 2467. It considered no facts regarding familial pressure, as Miller requires, id. at 2467, and only conclusory statements regarding peer pressure, Da22 ("Certainly we have the testimony that Mr. Harrison was barking out orders to the two juvenile defendants[,] . . . that Mr. Harrison was the person who, in fact, concocted this scheme and had these two minions working for him."), including nothing about the nature of the relationships between Comer and his co-defendants, about why Comer participated in the offense, or about the extent to which the limitations of youth made Comer susceptible to pressure from his peers. Nor did the sentencing

court ever hear whether Comer was capable of assisting his counsel and making mature decisions in his defense. In sum, there was no Miller hearing. And obviously, there was also no determination that Comer's offense reflected incorrigibility, as opposed to the transient immaturity of youth.

It was for this reason that the court below, which had also sentenced Comer, recognized Comer's sentencing as constitutionally inadequate after Miller:

> [T]here's no doubt in anybody's mind, including mine 'cause I - I was there and I remember, that - that I did consider on some level Mr. Comer's age at that time in which I sentenced him. But I understand fully your argument is that well that was very much on a different level because we didn't know what we know now or maybe somebody did, but I didn't know what we known now with regard to - to the juvenile mind.
> [Pa176].

By ordering re-sentencing in this case, the court below provided the best evidence that the mitigating factors of youth were not properly presented or given the appropriate weight. At the very least, then, a remand is required for this purpose. On this point, the decision of the trial court should be affirmed.

**V. There Are No Procedural, Preclusionary, or Precedential Bars to the Relief Comer Seeks.**

Finally, Comer's claims in this matter are properly before this Court, and are not procedurally barred, precluded, or adversely determined, as the State has argued. Comer brought this action to correct an "illegal" sentence under R.

3:21-10(b), because his sentence of de facto LWOP was "not imposed in accordance with law," State v. Murray, 162 N.J. 240, 246-247 (2000), namely, the Constitutions of the United States and the State of New Jersey. As a result, his challenge "may be entered at any time," and cannot be time-barred. State v. Acevedo, 205 N.J. 40, 47 n.4. (2011).

Further, Comer's claims are not previously determined because he has never raised them before, as the trial court recognized. On direct appeal, and in a different post-conviction proceeding, Comer challenged his sentence on different grounds, arguing that it was excessive, not "illegal," as he argues here. Even more obviously, the Supreme Court's decisions in Graham, Miller, and Montgomery, were decided after this Court upheld Comer's sentence on direct appeal and after Comer challenged his sentence, on other grounds, in a petition for post-conviction relief. Thus, even if Comer here raised claims that were identical to previous claims, he would not be barred from a decision on the merits because preclusionary doctrines do not apply in the event of a relevant, intervening decision from a higher Court. See Bobby v. Bies, 556 U.S. 825, 836 (2009) ("[E]ven if the core requirements for issue preclusion had been met, an exception to the doctrine's application would be warranted due to this Court's intervening decision in Atkins."); Davis v. United States, 417 U.S. 333, 342 (1974) ("intervening change

in the law" an exception to law of the case doctrine); accord Sisler v. Gannett Co., Inc., 222 N.J. Super. 153, 160 (App. Div. 1987).

Finally, Comer presents issues of first impression to this Court. This Court has yet to determine the reach and application of the United States Supreme Court's jurisprudence from Roper to Montgomery, so there is no binding authority contrary to Comer's arguments. To the contrary, as Comer has argued throughout, binding and persuasive authority overwhelmingly support his arguments and demand that his sentence be vacated and his case remanded for resentencing.

## CONCLUSION

For the foregoing reasons, defendant James Comer respectfully submits that this Court should affirm the judgment vacating his sentence, and remand for re-sentencing to a term less than de facto life without parole, after a hearing that comports with the constitutional mandates of Miller and Montgomery.

Respectfully submitted,
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